

Additional
duty on ale
and beer.

And in addition to the said duty there shall be £ s. d.
charged, levied, and paid, as from the said eighth
day of March nineteen hundred until the first
day of August nineteen hundred and one, for
every thirty-six gallons where the worts thereof
were before fermentation of a specific gravity of
105⁵ degrees, an additional duty of - - 0 1 0
• With a proportionate increase or decrease
according to the specific gravity of the worts
thereof before fermentation.

Repeals
37 & 38 Vict.
c. 46.

58 & 59 Vict.
c. 38.

3. In section three of the Customs (Isle of Man) Tariff Act, 1874, the words "according to the foregoing table" and the words "according to the scale in the said table," and in section one of the Isle of Man (Customs) Act, 1895, the words "ale or beer according to the specific gravity of the worts thereof before fermentation as set forth in the following table," and the table therein referred to, are hereby repealed.

Short title.

4. This Act may be cited as the Isle of Man (Customs) Act, 1900.

CHAPTER 32.

An Act to amend the Merchant Shipping Act, 1894, with
respect to the Liability of Shipowners and others.
[6th August 1900.]

BE it enacted by the Queen's most Excellent Majesty, by and
with the advice and consent of the Lords Spiritual and
Temporal, and Commons, in this present Parliament assembled,
and by the authority of the same, as follows:

Further
limitation of
liability of
shipowner.
57 & 58 Vict.
c. 60.

1. The limitation of the liability of the owners of any ship set
by section five hundred and three of the Merchant Shipping Act,
1894, in respect of loss of or damage to vessels, goods, merchandise,
or other things, shall extend and apply to all cases where (without
their actual fault or privity) any loss or damage is caused to
property or rights of any kind, whether on land or on water, or
whether fixed or moveable, by reason of the improper navigation
or management of the ship.

Limitation
of liability
of harbour
conservancy
authority.

2.—(1.) The owners of any dock or canal, or a harbour authority
or a conservancy authority, as defined by the Merchant Shipping
Act, 1894, shall not, where without their actual fault or privity
any loss or damage is caused to any vessel or vessels, or to any
goods, merchandise, or other things whatsoever on board any
vessel or vessels, be liable to damages beyond an aggregate amount
not exceeding eight pounds for each ton of the tonnage of the
largest registered British ship which, at the time of such loss or
damage occurring, is, or within the period of five years previous
thereto has been, within the area over which such dock or canal

owner, harbour authority, or conservancy authority, performs any duty or exercises any power. A ship shall not be deemed to have been within the area over which a harbour authority or a conservancy authority performs any duty, or exercises any powers, by reason only that it has been built or fitted out within such area, or that it has taken shelter within or passed through such area on a voyage between two places both situate outside that area, or that it has loaded or unloaded mails or passengers within that area.

(2.) For the purpose of this section the tonnage of ships shall be ascertained as provided by section five hundred and three, subsection two, of the Merchant Shipping Act, 1894, and the register of any ship shall be sufficient evidence that the gross tonnage and the deductions therefrom and the registered tonnage are as therein stated.

(3.) Section five hundred and four of the Merchant Shipping Act, 1894, shall apply to this section as if the words "owner of a British or foreign ship" included a harbour authority, and a conservancy authority, and the owner of a canal or of a dock.

(4.) For the purpose of this section the term "dock" shall include wet docks and basins, tidal docks and basins, locks, cuts, entrances, dry docks, graving docks, gridirons, slips, quays, wharves, piers, stages, landing-places, and jetties.

(5.) For the purposes of this section the term "owners of a dock or canal" shall include any person or authority having the control and management of any dock or canal, as the case may be.

(6.) Nothing in this section shall impose any liability in respect of any such loss or damage on any such owners or authority in any case where no such liability would have existed if this Act had not passed.

3. The limitation of liability under this Act shall relate to the whole of any losses and damages which may arise upon any one distinct occasion, although such losses and damages may be sustained by more than one person, and shall apply whether the liability arises at common law or under any general or private Act of Parliament, and notwithstanding anything contained in such Act.

Limitation of liability where several claims arise on one occasion.

4. This Act may be cited as the Merchant Shipping (Liability of Shipowners and others) Act, 1900.

5. This Act shall be construed as one with the Merchant Shipping Act, 1894, and that Act and the Merchant Shipping Act, 1897, the Merchant Shipping (Exemption from Pilotage) Act, 1897, the Merchant Shipping (Liability of Shipowners) Act, 1898, the Merchant Shipping (Mercantile Marine Fund) Act, 1898, and this Act, may be cited together as the Merchant Shipping Acts, 1894 to 1900.

Construction.

57 & 58 Vict. c. 60.
60 & 61 Vict. c. 39.
60 & 61 Vict. c. 61.
61 & 62 Vict. c. 14.
61 & 62 Vict. c. 14.